circumstantial evidence. [Citation omitted.] Apple's documents were authenticated both by the attorney's statement that they had been produced in discovery and by their form, which indicates authenticity."].)

2. Kadlic Declaration

Obj. Nos. 1, 2 (¶¶ 9, 10) – **Overruled.** (Evid. Code §§ 700, 702.)

3. Worthington Declaration

Obj. No. 1 (¶ 7) – **Overruled.** (Evid. Code §§ 700, 702; foundation laid in part by Worthington Decl. ¶¶ 3, 4.)

Obj. No. 2 (¶ 8) – **Sustained in part** as to "and it did not appear to be broken." Otherwise, **overruled.**

4. Donatto Declaration

Obj. Nos. 4, 5 and 6 {as to first sentence of paragraph 10 only) – **Sustained**. (*Fernandez v. Alexander* (2019) 31 Cal.App.5th 770, 781-782; *Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 155-156.) Among other things, to be admitted, the medical expert opinion cannot be conclusory, must contain a "reasoned explanation" for the opinions expressed, and with respect to a causation opinion, must be sufficient to convince a trier of fact "that it is more probable than not the negligent act was a cause-in-fact of the plaintiff's injury," or in this case, not the cause in fact of Plaintiff's injury or of making Plaintiff's injury worse. (*Sanchez v. Kern Emergency Medical Transportation Corp., supra,* 8 Cal.App.5th at 160; *Fernandez v. Alexander, supra,* 31 Cal.App.5th at 781-782 (expert declaration was conclusory, not supported by a reasoned explanation, and his conclusion on causation, though stated to a "reasonable degree of medical probability," failed to connect the factual predicates to the conclusion, making the declaration inadmissible on summary judgment].) Dr. Donatto describes Plaintiff's injuries but then states only that "digital pressure to the top of an adult foot would not have caused bone fractures" (a conclusion without a reasoned explanation or supporting medical, anatomical or other facts on which the conclusion is based), and that any attempted reduction "would not have caused further injury than the initial injury itself" (another conclusion without supporting reasoned explanation). (Donatto Decl. ¶ 9.) His conclusion that Plaintiff's injuries "are a direct result of the force sustained during the Judo exercise" is unsupported and inadmissible for the same reasons.

B. Defendants' Objections

Obj. Nos. 3, 7, 8 – **Overruled**. Witnesses testifying to their observations of events; admission of party opponent exception to hearsay rule. (Evid. Code § 1220.)

3. 9:00 AM CASE NUMBER: C24-03466
CASE NAME: MASON BONDI VS. TRENT LOCKETT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT ATTACH ORDER AND ISSUANCE FILED BY BONDI, MASON
FILED BY:
TENTATIVE RULING:

Before the Court are three applications for right to attach orders and writs of attachment filed by plaintiffs Mason Bondi, Michael Bondi, and Yannick Pigois-Braunschweig, against individual defendants Trent Lockett ("Lockett") and Yann Stephane Lasme ("Lasme"), and corporate defendant Lola Ventures, Inc. ("Lola Ventures," collectively "Defendants"). For the reasons set forth below, the applications for right to attach orders and writs of attachment as to Lockett, Lasme and Lola Ventures, are **DENIED without prejudice.**

Background

Plaintiffs Mason Bondi, Michael Bondi, and Yannick Pigois-Braunschweig ("Plaintiffs" or "Lessors") are owners of real property located at 401 Parr Boulevard, Richmond, California (the "Property"). (Bondi Decl. ISO Attachment MPA ["Bondi Decl."], ¶¶ 1-2, Exh. A.) In August 2018, Plaintiffs entered into a commercial multi-tenant lease (the "Lease") with One In The Chamber, a California corporation ("Lessee"), with respect to the Property, which had a term that expired on October 31, 2023. (Bondi Decl., ¶ 2, Exh. A, § 1.3.) Lockett and Lasme signed on behalf of One In The Chamber, with both of them identified as co-owners. (Bondi Decl., Exh. A, p. 19.)

The obligations of the lease were guaranteed by Lockett and Lasme, who represented in the Guaranty that they each had a financial interest in the Lessee and an interest in the operations of the Lessee. (the "Guaranty"; Bondi Decl., ¶ 2, Exh. B.)

On or around August 2019, Lessee One In The Chamber (at this time known as Lola Ventures, Inc.) entered into a commercial sublease of the Property with Madrone Family Farms, Inc. (the "Sublease"; Bondi Decl., ¶ 3, Exh. C.). Lockett and Lasme signed the Sublease on behalf of Lola Ventures, and Lockett signed the Sublease on behalf of Madrone Family Farms Inc. (*Ibid*.) The Sublease was to run the same length as the prime Lease. (*Ibid*.)

After the lease expired on October 31, 2023, Defendants remained in possession of the Property and did not surrender possession until March 15, 2024 (the surrender date). (Bondi Decl., ¶ 4.) Between the expiration of the lease and the surrender date, negotiations took place between Plaintiffs and some Defendants and others about signing another lease for the Property. (Lockett Decl. ISO Opposition, ¶¶ 19-20; Jamaine Pitter Decl. ISO Opposition, ¶¶ 5-13.) As of approximately May 2023, Lockett appears to have ended his relationship with Lola Ventures. (Lockett Decl. ISO Opposition, ¶¶ 9-20; Gregor Decl. ISO Opposition, ¶¶ 1-2, Exh. 1.)

On December 19, 2024, Plaintiffs filed the operative complaint in this matter, which alleges the following causes of action: (1) breach of lease; (2) breach of guaranty; and (3) waste. (Complaint, pp. 1-5.) On April 18, 2025, Lockett filed a cross-complaint against Yann Stephane Lasme, Lola Ventures, and Madrone Family Farms, alleging claims for contribution and indemnity. (Lockett Cross-Complaint, pp. 1-4.) On May 8, 2025, Yann Stephane Lasme filed a cross-complaint against Trent Lockett, Jamaine Pitter ("Pitter"), and Smart Marketing, alleging a claim for equitable indemnity. (Lasme Cross-Complaint, pp. 1-3.)

On September 29, 2026, Plaintiffs filed the three instant applications for right to attach orders and for issuance of writs of attachment as to Lockett, Lasme, and Lola Ventures. Only Lockett has filed an opposition.

Legal Standard for Writ of Attachment

"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than $500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (*Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852.)

In issuing a writ of attachment, the court must make the following findings:

> (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
> (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.
> (3) The attachment is not sought for purposes other than the recovery on the claim upon which the attachment is based.
> (4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc., § 484.090, subd. (a).)

To obtain an attachment against a natural person, the claim must arise out of the person's conduct of a "trade, business or profession." (Code Civ. Proc. § 483.010, subd. (c).) "Those terms 'may be found to encompass almost any activity engaged in for profit with "frequency and continuity" . . . .' [Citations omitted.]" (*Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson* (1987) 197 Cal.App.3d 1, 4; see also *Advance Transformer Co. v. Superior Court* (1974) 44 Cal.App.3d 127, 144 ["if the sum total of the circumstances justifies the conclusion that the guarantor occupied himself to a substantial degree and on a continuing basis in promoting his own profit through provision of credit or management to the primary obligor, a guarantee executed in the course of such activity may properly be considered an obligation arising out of the conduct of the guarantor's business."].)

Plaintiff as the party seeking the attachment also bears the burden of demonstrating the basis for computation of its damages. (*CIT Group/Equipment Financing, Inc. v. Super DVD, Inc.* (2004) 115 Cal.App.4th 537, 540.) The damages sought do not need to be liquidated, but "they must be measurable by reference to the contract sued upon, and their basis must be reasonable and certain." (*Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1481, fn. 5.) The amount secured by an attachment is the about of the debt claimed by the plaintiff plus estimated allowable attorneys' fees and costs, if requested. (*Goldstein, supra,* 164 Cal.App.4th at 852.)

<u>Discussion</u>

<u>Procedural Requirements:</u>

With respect to the initial factors to look at as per *Goldstein*, some of these are not contested. (*Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852 ["a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than $500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature."].) This is certainly a claim for money based on contract as to Defendants as all defendants are signatories on the written contracts at issue in the Complaint. (Complaint, ¶¶ 1-19, Exh. A; Bondi Decl., ¶¶ 1-6 and 8, Exhs. A, B, C, and D.) This appears to relate to a fixed or readily ascertainable amount not less than $500 as it arises out of a contract, but this will be discussed further below. (Bondi Decl., ¶¶ 6-8.) The debt here is unsecured. (*Id*. at ¶ 8.) Whether or not this claim is commercial in nature is being contested and is discussed below.

With respect to the Code of Civil Procedure section 484.090, subdivision (a), requirements, this appears to be a claim upon which an attachment may issue because it related to an unsecured debt arising out of a contract that is alleged to have a readily ascertainable amount of money sought. (Complaint, ¶¶ 1-19, Exh. A; Bondi Decl., ¶¶ 1-6 and 8, Exhs. A, B, C, and D.) Whether the claim is commercial in nature is contested by Lockett and is discussed below. Whether Plaintiffs have established probable validity of the claim is contested by Lockett as well and is discussed below. The uncontested evidence shows that the attachment is not sought for purposes other than the recovery on the claim upon which the attachment is based and that the amount to be secured by the attachment is greater than zero. (Bondi Decl., ¶¶ 6-8.)

Plaintiffs have obtained bonds in the amount of $10,000 to be utilized as undertakings for each of the writs of attachment sought against Lasme, Lockett, and Lola Ventures.

<u>Whether The Claim Sued Upon is Commercial in Nature?</u>

Lockett argues that the claim is not commercial in nature because it does not arise out of his business, trade, or profession. (Opposition, pp. 3:18-7:8.) He asserts that he was simply a "passive investor" in Lola Ventures and that he "was never involved in the management or day-to-day operations of Lola nor Madrone during [2018 to May 2023] or any other time." (Opposition, pp. 2:24, 6:20; Lockett Decl., ¶ 16.) He further argues that he was the Chief Executive Officer ("CEO") of Lola Ventures from December 2022 to May 2023, but that this was not his choice and that he did not manage or participate in the day-to-day operations of Lola Ventures as his title of CEO was a title only. (Opposition, p. 6.)

The *Advance Transformer* case goes into detail on how to analyze whether a defendant guarantor is engaged in business such that an attachment may be issued against them.

> If the defendant is engaged generally in the business of guaranteeing for a consideration the debts of others, that is, lending credit, any liability incurred as a result is a debt arising out of the conduct of his business. At the opposite extreme, a retired person, with no financial stake in the success of the primary obligor, cannot properly be held engaged in business solely by virtue of an isolated instance in which he guarantees a commercial obligation out of friendship and without compensation.
>
> Cases falling between these extremes will require the exercise of judgment on a case-to-case basis to determine whether the activity of the defendant with respect either (1) to the extension of credit generally, or (2) to the business of the primary obligor is such as to justify the conclusion that the guarantee of the primary obligor's debt sued upon is part and parcel of an activity which occupies the time, attention and effort of the guarantor for the purpose of livelihood or

> profit on a continuing basis.
>
> In cases involving guarantees by principal shareholders of closely held corporations, consideration will necessarily be given to the degree and continuity of the guarantor's involvement in the affairs of the primary obligor out of which the indebtedness has arisen. For example, (1) if a corporation has habitually been provided with operating capital through the medium of such guarantees by the defendant, or (2) the obligation sued upon has resulted from an extension of credit in reliance upon defendant's continuing guarantee, or (3) the defendant has extensively occupied himself in the management of the primary obligor on a continuing basis and has a major stake in its success, the required "frequency and continuity" may be found to exist. In short, if the sum total of the circumstances justifies the conclusion that the guarantor occupied himself to a substantial degree and on a continuing basis in promoting his own profit through provision of credit or management to the primary obligor, a guarantee executed in the course of such activity may properly be considered an obligation arising out of the conduct of the guarantor's business.

(*Advance Transformer Co. v. Superior Court* (1974) 44 Cal.App.3d 127, 144.)

Plaintiffs argue that Lockett admits in his opposition that he and Lasme "decided to go into the cannabis cultivation business together." (Reply, p. 3:26-27, *citing* Opposition, p. 2:13-14.) They offer a number of additional reasons why the basis of Lockett's involvement was commercial in nature. First, the original lease for the Property stated at section 1.8 that "the Agreed Use was for 'warehousing and cultivation of cannabis products with office and administrative use to support such business, as long as the use is allowed by the City…' " (Bondi Decl., Exh A [Lease], p. 19, § 1.8.) Further, Lockett signed the lease on or about September 1, 2018, as a "co-owner" on behalf of the tenant and initialed every page of the lease. (Bondi Decl., Exh A [Lease], p. 19.) Lockett also signed an addendum to the lease shortly thereafter as "co-owner" of the tenant. (*Ibid*.) In addition to signing the lease on behalf of Lola Ventures, Lockett also signed a Guaranty by which he agreed that "each Guarantor has a financial interest in the Lessee and an interest in the operations of the Lessee." (Bondi Decl., Exh B [Guaranty].) Finally, when Lola Ventures subleased the Property to Madrone Family Farms as sublessee for $1 per month, Lockett signed as a co-owner not just on behalf Lola Ventures but on behalf of Madrone Family Farms. (Bondi Decl., Exh C [Sublease], p. 4.)

In analogizing/distinguishing the facts here from *Advance Transformer* in order to determine whether Lockett is more like: (1) a person in the business of guaranteeing the debts of others for consideration; or (2) a retired person with no financial stake in the success of the primary obligor, who guarantees a commercial obligation out of friendship and without compensation—Lockett is more like the former. The activity of Lockett with respect Lola Ventures is such as to justify the conclusion that his guarantee of Lola Venture's debt is part and parcel of an activity which occupies the time, attention and effort of Lockett for the purpose of livelihood or profit on a continuing basis.

Although he is not in the business of offering guarantees for money, his connection with Lola Ventures and Madrone Family Farms shows that these are businesses that he actively participates in. In 2018, he "made a deal to co-venture on a cannabis project in California" with Lasme, he became a majority shareholder with Lasme and was a board member, he took part in the decisions to acquire and operate Madrone Family Farms and to allow Pitter to "completely oversee the Madrone project," and he was the CEO for six months. (Lockett Decl., ¶¶ 2, 5, 6, 9, 10, 11, 16.) Additionally, Lockett signed the Lease, two addendums to the Lease, he reviewed the lease prior to signing, he signed the Guaranty (in which he represented that he has a financial interest in Lola Ventures and an interest in the operations of Lola Ventures), and he signed the Sublease on behalf of both Lola Ventures and Madrone Family Farms as a co-owner. (Bondi Decl., ¶¶ 2-3, Exhs. A, B, C.) Finally, Lockett invested over a million dollars in Lola Ventures and hoped for a return on that investment. (Lockett Decl., ¶ 16.)

Based on the above, the Court finds that instant claims commercial in nature as to Lockett and that the guarantee of Lola Venture's debt was done for the purpose of livelihood or profit on a continuing basis as he extensively occupied himself in the management of Lola Ventures and had a major stake in its success. At the very least, it would appear fair to describe Lockett's "trade or business as that of a business investor," which is sufficient to satisfy the commercial purpose standard. (*Great American Ins. Co. v. National Health Services, Inc.* (1976) 62 Cal.App.3d 785, 795.) The claim here is one for which an attachment may be issued.

<u>Probable Validity</u>

Plaintiffs claim that their application for a Right to Attach Order against Defendants should be granted in the amount of $322,406.84. (MPA ISO Attachment, p. 8.) This includes the balance of September 2023 rent ($12,893.38), October 2023 rent ($45,580.90), rent and holdover charges from November 2023 to March 2024 of $234,051.85 (five months of base rent [$38,374.27], common area operating expenses [$4,180.60], the 10% late fee [$4,255.49]), in addition to past due garbage fees [$7,054.82], attorneys' fees [$20,000], and costs [$2,825.89]). (Bondi Decl., ¶¶ 6, 8.)

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., § 481.190.)

Here, Lockett argues that there is no probably validity here because Plaintiffs consented to Defendants continued possession of the Property and accepted rent after the lease terminated, so that there was no breach for holding over. (Opposition, p. 7.) Lockett's involvement with Lola Ventures appears to have ended around late May 2023. (Lockett Decl., ¶¶ 12-15.) Lockett does not state what happened to his relationship with Madrone Family Farms, which he was a co-owner of when the sublease was signed. (Bondi Decl., ¶ 3, Exh. C.) Lockett's Opposition includes a declaration from Jamaine Pitter, which describes the attempt to secure a new lease from September 2023 until March 2024. (Pitter Decl., ¶¶ 1-13.) The Pitter declaration asserts that rent was paid for the months of September, October, and November 2023, but does not state how much rent was paid. (*Id*. at ¶ 7.) This is somewhat supported by Exhibit 4 to the Pitter Declaration, which shows Bondi saying on December 4, 2023, "[t]hank you for sending the rent check, that has helped us feel reassured that we are all committed to working together." (*Id*. at ¶ 11, Exh. 4.) The amount of this payment is seemingly identified as having been $10,000. (Bondi Decl. ISO Reply, ¶ 2.) The Pitter Declaration also shows there was an intention to pay the rent for the Property for the months of December 2023, and January 2024. (*Id*. at ¶ 12, Exh. 5.)

Plaintiffs argue that it is undisputed that the Lease expired on October 31, 2023, and that the Property was not vacated until March 2024. (Reply, p.6.) Plaintiffs argue that Defendants needed to surrender possession or continue to pay rent while they remained in possession and Defendants did neither. (*Id*., at p. 7.) They further argue that a commercial tenant becomes a holdover tenant if they fail to execute a new lease to extend the fixed-term and that holdover tenants are liable for the value of the use and occupation of the premise during the time of holding over, such as fair rental value of the premises. (*Id*., at p. 6.) In the Bondi Declaration in support of the Reply, Bondi asserts that with respect to the security deposit, "we applied and exhausted the security deposit against past due rent through September 2023," and "[t]he last payment of rent we received from Defendants was in January 2024, in the amount of $10,000. We applied that payment towards the balance of the September 2023 rent." (Bondi Decl. ISO Reply, ¶ 2.) Plaintiffs issued a Three Business-Day Notice to Pay or Quit, which demanded a replenishment of all past due rent and charges. (*Id*., at ¶ 2, Exh. B.)

With this evidence before it, the Court holds that Plaintiffs have not shown they are likely to prevail on their claim for $322,406.84. (Lockett Decl., ¶ 21.) According to the Three Business-Day Notice to Pay or Quit, there was no balance of rent remaining for September 2023, and only $40,499.17 remaining for October 2023. (Bondi Decl. ISO Reply, ¶ 2, Exh. B.) This conflicts with the amounts identified as being currently due by Plaintiffs in their supporting declaration ($12,893.38 for September 2023 and $45,580.90 for October 2023). (Bondi Decl., ¶ 6.)

Further, Plaintiffs seek the contract rental price, plus common area maintenance, plus a late fee, for the months of November 2023, December 2023, January 2024, February 2024, and March 2024. The law states that "[t]here is no contractual relationship between a holdover tenant and the landlord; the tenant has but ' "naked possession." ' " (*Aviel v. Ng* (2008) 161 Cal.App.4th 809, 820.) "[T]he holdover tenant is liable for the value of the use and occupation of the premise during the time of holding over." (*Ibid*.) The amount of damages is not simply the prior lease rate, but the "fair rental value" of the premises. (*Id*., at 821.) Damages "must be measurable by reference to the contract sued upon, and their basis must be reasonable and certain." (*Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1481, fn. 5.)

Here, there is no certainty as to the value of the Property from November 2023 to March 2024, as it would not be appropriate to state that the contract would control when there is no longer any contractual relationship. Even if the value during that time was the base rent previously agreed to, that would not include a $4,255 late fee Plaintiffs have added on to every month, as that is purely contractual. Thus, in light of the conflict in evidence between what Plaintiffs have submitted with respect to the September 2023 and October 2023 damages, and the lack of certainty of the damages for November 2023 to March 2024, the Court does not find probable validity for the damages Plaintiffs seek in the amount of $322,406.84. That amount of damages is not measurable by reference to the contract sued upon, and their basis is not reasonable and certain. (*Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1481, fn. 5.)

In light of the above, the Court finds that Plaintiffs have not established probable validity of their claim for $322,406.84.

<u>Lasme & Lola Ventures</u>

The burden of proof is on the party requesting the attachment to prove all facts essential to support the attachment it seeks, including that the claim is one on which an attachment may be issued and the probable validity of its claim, even if there is no opposition by the defendant. (*See generally Loeb*

& Loeb v. Beverly Glen Music, Inc. (1985) 166 Cal.App.3d 1110, 1115-1116; Code Civ. Proc. § 484.090, subd. (a).)

Here, Defendants Lasme and Lola Ventures have not opposed the instant motion. However, because the Court has found that Plaintiffs have not met their burden of showing the probable validity of their claim, the Court will be unable to grant the motion as to these defendants.

Ruling

The Court **DENIES** Plaintiffs' applications for right to attach orders and writs of attachment against Defendants without prejudice.

4. 9:00 AM CASE NUMBER: C25-00602
CASE NAME: GLOBAL VENTURE ENTERPRISES LLC, VS. THE HOUSE OF WALTER H. WILLIAMS, LLC,
***HEARING ON MOTION IN RE: WITHDRAW REQUEST FOR ENTRY OF DEFAULT OF DEFENDANT THE HOUSE OF WALTER H. WILLIAMS, LLC**
FILED BY: GLOBAL VENTURE ENTERPRISES LLC,
TENTATIVE RULING:

Plaintiff global Venture Enterprises LLC filed this action on March 5, 2025. Plaintiff succeeded in serving Defendant The House of Walter H. Williams, LLC on July 2, 2025. On August 18, 2025, Plaintiff requested Entry of Default and the court entered the requested default. On October 3, 2025, Plaintiff filed the instant Motion to Withdraw Request for Entry of Default, with a declaration accompanying noting that Plaintiff had learned additional information since the entry of the default and wished to amend the pleading to add individual parties. Plaintiff is unable to amend new parties in when the sole original Defendant—and therefore the entire operative complaint—is subject to default. Plaintiff served Defendant's agent for service of process with this motion. The Court received no opposition to this request.

Plaintiff cites to Code of Civil Procedure section 473(b) to note that relief from default may be taken as a result of mistake or inadvertance. That section, however, speaks specifically to "reliev[ing] a party or the party's legal representative from a judgment, dismissal, order, or other proceeding *taken against the party* through the party's mistake, inadvertence, surprise, or excusable neglect." The Court could find no guidance on situations like the one at issue here. Plaintiff does properly note that courts are to liberally allow amendment to a complaint. Code Civ. Pro. § 473(a). Given that Plaintiff filed this motion relatively promptly, the stated interest is in amending new parties in, and the Court sees no substantial prejudice in permitting the relief requested, the Motion is **granted**. The default judgment is withdrawn and Plaintiff may file an amended complaint.

5. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE: KYLE A. SHAMBERG**
FILED BY: SIFERS, SHELBY
TENTATIVE RULING: